



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

August 26, 2020

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201901982 regarding Police Officer Waqas Shabir, Tax No. [REDACTED] (DADS No. 2020-22215) and Police Officer Faisal Ejaz, Tax No. [REDACTED] (DADS No. 2020-22214)

Dear Mr. Darche:

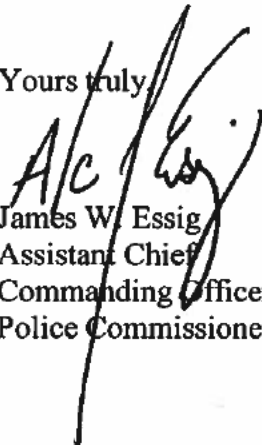
The Police Commissioner has reviewed the facts and circumstances of this matter and has determined that the proposed penalty is not warranted against either officer in this case. Specifically, while Police Officer Shabir's stop of the complainant in this case was improper, it does not warrant an imposition of a Schedule "B" Command Discipline given that Police Officer Shabir has no prior substantiated CCRB complaints against him and is highly rated by his Commanding Officer.

As for the other Respondent in this case, Police Officer Ejaz did not initiate the stop in question and he was not the primary contact officer. Instead, Police Officer Ejaz was merely present at the scene of a stop initiated and conducted by his partner, officer Shabir. Additionally, the CCRB noted no additional misconduct on the part of Police Officer Ejaz for whom this is a first substantiated CCRB complaint. Finally, like officer Shabir, Police Officer Ejaz is highly rated by his Commanding Officer.

Therefore, the Police Commissioner has determined that Police Officer Shabir will receive a Schedule "A" Command Discipline for the *totality* of his actual and noted misconduct, while Police Officer Ejaz will receive Training from the Police Academy in Patrol Guide Procedure 212-11 (Investigative Encounters/Stop).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


James W. Essig
Assistant Chief
Commanding Officer
Police Commissioner's Office